

How To Draft A UCC-1 From Scratch

The Complete Research Paper

NMD Solutions

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Abstract

This paper documents the mechanics of drafting, filing, and maintaining a Uniform Commercial Code Financing Statement, commonly called a UCC-1. It is written for lawyers, paralegals, secured lenders, equipment lessors, back office staff, and business owners who need a working reference rather than a marketing pitch. Every legal claim is footnoted to primary authority. The paper walks the National UCC Financing Statement form field by field, surveys the filing rules of twenty of the busiest jurisdictions in the United States, catalogs the most common rejection reasons and their fixes, and closes with a full step by step walkthrough of a hypothetical filing.

The controlling law is Article 9 of the Uniform Commercial Code as enacted in each state. The uniform text lives at Cornell Legal Information Institute. Every state has adopted Article 9 in a form close to uniform, but material variations exist in fee, form of filing, and administrative practice. The paper flags those variations where they matter.

This is a research paper. It is not legal advice. Filers with material collateral, complex debtor structures, or bankruptcy exposure should retain counsel.

Uniform Commercial Code Article 9, Cornell Legal Information Institute, <https://www.law.cornell.edu/ucc/9>.

1. What A UCC-1 Is

A UCC-1 Financing Statement is a public notice. It tells the world that a named secured party claims a security interest in identified collateral owned by a named debtor.¹ The statement itself does not create the security interest. The security interest is created by an underlying security agreement between debtor and secured party, and it attaches when three conditions are met under Section 9-203: value has been given, the debtor has rights in the collateral, and the debtor has authenticated a security agreement that describes the collateral.² The UCC-1 perfects that interest by giving public notice through the appropriate filing office.

Perfection matters for one reason: priority. Under Section 9-322, the first party to file or perfect generally wins if two creditors claim the same collateral.³ A perfected secured creditor also outranks most unsecured creditors and the debtor's trustee in bankruptcy under Bankruptcy Code Section 544.⁴

What a UCC-1 is not.

It is not proof that a debt exists. It is not proof that the underlying security agreement is valid. It is not a lien in the sense a mortgage is a lien. It is not a judgment. It is not a criminal filing. A UCC-1 filed without authorization from the debtor is void and exposes the filer to statutory damages of five hundred dollars per violation plus actual damages under Section 9-625.⁵

The common misconception that filing a UCC-1 alone “creates” a claim is wrong. The statement is a notice. The claim comes from the security agreement behind it.

¹U.C.C. Section 9-502(a) (2010 revision) (financing statement must provide name of debtor, name of secured party or representative, and indication of collateral); Cornell LII, <https://www.law.cornell.edu/ucc/9/9-502>.

²U.C.C. Section 9-203(b) (attachment requirements); <https://www.law.cornell.edu/ucc/9/9-203>.

³U.C.C. Section 9-322(a)(1) (first to file or perfect rule); <https://www.law.cornell.edu/ucc/9/9-322>.

⁴11 U.S.C. Section 544(a)(1) (trustee's strong arm power against unperfected security interests).

⁵U.C.C. Section 9-625(b), (e) (statutory damages for unauthorized filing); <https://www.law.cornell.edu/ucc/9/9-625>.

2. Who Files And Why

Four categories of secured party file the majority of UCC-1s in the United States.

Traditional secured lenders. Banks, credit unions, and specialty finance companies take a security interest in accounts, inventory, equipment, or all business assets in exchange for a loan or line of credit. The UCC-1 protects the lender against later creditors and against the debtor's bankruptcy trustee. Nearly every commercial loan of size is accompanied by a UCC-1.

Equipment lessors. A true lease of equipment does not require a UCC-1, but Section 1-203 draws a fact intensive line between true lease and disguised secured sale, and lessors routinely file a "precautionary" UCC-1 that expressly says the filing is for notice only.⁷ The precautionary filing costs nothing to make and preserves the lessor's position if a court later recharacterizes the lease.

Consignors. A consignor of goods worth more than one thousand dollars must file a UCC-1 to defeat the consignee's other creditors under Section 9-103(d).⁸ Retail buyers in the ordinary course of business still take free of the consignor's interest under Section 9-320.⁹

Related party lenders. Owners, family members, and affiliated entities routinely lend money into a closely held business and file a UCC-1 to secure repayment. The filing is legal, the underlying loan is legal, and the security interest is legal so long as the loan is real, the collateral is real, and the transaction is documented before the fact. Related party filings receive extra scrutiny in bankruptcy under Section 547 preference law and under fraudulent transfer statutes, and the paper covers that in Section 11.¹⁰

The self filed strategy where a debtor files a UCC-1 against themselves in favor of a related entity is a common tool for asset protection planning. It is not a fraud shield. It is not immune from lender objection during underwriting. It is a documented, public, and rebuttable position.

⁷U.C.C. Section 1-203 (lease versus security interest); <https://www.law.cornell.edu/ucc/1/1-203>.

⁸U.C.C. Section 9-103(d) (consignments); <https://www.law.cornell.edu/ucc/9/9-103>.

⁹U.C.C. Section 9-320(a) (buyer in ordinary course); <https://www.law.cornell.edu/ucc/9/9-320>.

¹⁰11 U.S.C. Section 547 (preferences).

3. The UCC-1 Form Field By Field

The National UCC Financing Statement is a two page form published by the International Association of Commercial Administrators, known as IACA.[»] Every state accepts the IACA form, and most state portals reproduce the same field structure. The current version carries a revision date of April 20, 2011, and remains authoritative through 2026. The form itself and its Additional Party addendum, UCC-1Ad, are available as free PDF downloads from IACA.

The fields.

Box 1. Debtor's name. Only one debtor per box. The name field is subdivided.

Box 1a. Organization's name. Enter the exact legal name shown on the debtor's most recent public organic record filed with the state of formation. For a Delaware limited liability company, that is the name printed on the Certificate of Formation as filed with the Delaware Secretary of State. Suffixes matter. "Acme Holdings, LLC" and "Acme Holdings LLC" are treated as materially different by most filing offices even though search logic usually reconciles them. Follow the source document exactly.[»]

Box 1b. Individual's surname, first personal name, additional names, and suffix. Enter each element in its own subbox. The 2010 amendments to Article 9 give states a choice between "Alternative A" and "Alternative B" for the sufficient individual name. Under Alternative A, adopted by most states, the individual's name is sufficient only if it matches the name on the debtor's unexpired driver's license issued by the debtor's state.[»] Under Alternative B, adopted by a minority, the individual's name is sufficient if it matches either the driver's license or the individual's "individual name" or its surname and first personal name.[»] Filers should default to the exact driver's license name.

Box 1c. Mailing address. Street, city, state or province, postal code, country. Post office boxes are accepted for individual debtors in most states. Registered organizations should list the address of their registered agent or principal place of business.

Box 2. Additional debtor's name. Same substructure. If a filing has more than two debtors, use the UCC-1Ad addendum.

Box 3. Secured party's name. One secured party per box. Same subdivision into 3a (organization name), 3b (individual name), and 3c (mailing address). Under Section 9-503, the secured

[»]International Association of Commercial Administrators, National UCC Forms, <https://www.iaca.org/secured-transactions/forms/>.

[»]U.C.C. Section 9-503(a)(1) (registered organization debtor name); <https://www.law.cornell.edu/ucc/9/9-503>.

[»]U.C.C. Section 9-503(a)(4) Alternative A (individual debtor name, driver's license safe harbor).

[»]U.C.C. Section 9-503(a)(4) Alternative B.

party's name is sufficient if it identifies the person, and the safe harbor rules are less strict than for the debtor.

Box 4. Collateral description. Free text field, but the choice of language governs coverage. Three common approaches.

The “all assets” description. “All assets of the debtor, whether now owned or hereafter acquired, and all proceeds thereof.” Section 9-504(2) validates a “supergeneric” description in a financing statement, but the security agreement itself must contain a description that is more specific under Section 9-108.³ Filers who write “all assets” in Box 4 and then fail to write a more specific description in the underlying security agreement do not have an attached security interest.

The specific enumeration. “All inventory, equipment, accounts, chattel paper, general intangibles, deposit accounts, and instruments of the debtor, and all proceeds and products thereof.” This tracks the Article 9 collateral categories and matches most bank forms.

The narrow description. “One 2024 Kubota L2501 tractor, VIN [number], including all attachments, replacements, and proceeds.” Used for equipment financing and precautionary lease filings.

Box 5. Alternative designation, optional. Check one if applicable. The options are: Lessee/Lessor, Consignee/Consignor, Seller/Buyer, Bailee/Bailor, Licensee/Licenser. Checking a box signals the special nature of the relationship and controls which Article 9 subrules apply.⁴

Box 6a and 6b. Reserved for administrative use by some states, typically to indicate that the filing is against a transmitting utility (which enjoys perpetual duration under Section 9-515(f)) or is a manufactured home transaction, public finance transaction, or agricultural lien.⁵

Box 7. Alternative designation, filer reference data. Optional. Filers use this to link the filing to an internal loan number, matter number, or client file. The data appears on the acknowledgment copy.

Box 8. Optional filer reference data. In some IACA form versions this is a second free text field. It has no legal effect.

Attached: UCC-1Ad. The addendum accepts additional debtor names (with the same subdivided fields), additional secured party names, extended collateral descriptions, and a “Miscellaneous” text block. Use the addendum any time the main form runs out of room.

The paper filing must be signed only if a state's Section 9-516 variation requires it. Under the uniform text, no signature is required on the financing statement itself; instead, the debtor's authorization under Section 9-509 is a matter between debtor and secured party, evidenced by an authenticated security agreement.⁶

³U.C.C. Section 9-504 (indication of collateral); <https://www.law.cornell.edu/ucc/9/9-504>.

⁴U.C.C. Section 9-505 (filing and compliance with other statutes); <https://www.law.cornell.edu/ucc/9/9-505>.

⁵U.C.C. Section 9-515(f) (transmitting utility perpetual duration).

⁶U.C.C. Section 9-509 (authorization to file); <https://www.law.cornell.edu/ucc/9/9-509>.

Annotated example of a filled Box 1 through Box 4 for a hypothetical debtor “Acme Widgets, LLC,” a Delaware LLC:

1a. ORGANIZATION'S NAME
ACME WIDGETS, LLC

1c. MAILING ADDRESS	CITY	STATE	POSTAL CODE	COUNTRY
1209 Orange Street	Wilmington	DE	19801	USA

3a. ORGANIZATION'S NAME
FIRST NATIONAL BANK OF ANYWHERE

3c. MAILING ADDRESS	CITY	STATE	POSTAL CODE	COUNTRY
100 Main Street	Anywhere	NY	10001	USA

4. COLLATERAL DESCRIPTION
All assets of the debtor, whether now owned or hereafter acquired, and all proceeds thereof, including without limitation all accounts, chattel paper, inventory, equipment, instruments, investment property, documents, deposit accounts, letter-of-credit rights, general intangibles, and supporting obligations.

4. Where To File

The place to file is set by Section 9-501 read together with the debtor location rules of Section 9-301 and Section 9-307.²³ Get this wrong and the filing is ineffective for perfection even though it may still be legible and paid for.

The general rule for debtors that are registered organizations. File in the state under whose law the debtor was organized. Section 9-307(e) provides that a registered organization is located in the state in which it was organized.²⁴ A Delaware LLC files in Delaware, even if the LLC's headquarters, employees, and physical assets are entirely in Texas. A Nevada corporation files in Nevada. The rule looks to formation, not operations.

The general rule for individuals. Section 9-307(b)(1) locates an individual at the individual's principal residence.²⁵ A resident of Arizona files against an Arizona filing office regardless of where the individual works or does business, and regardless of where the collateral is physically located.

The general rule for general partnerships and other unregistered organizations. Section 9-307(b)(2) and (3) locate such organizations at their sole place of business or, if they have more than one, at their chief executive office.²⁶

Exceptions.

Fixtures, extracted collateral, and timber to be cut. Section 9-501(a)(1)(B) requires a fixture filing in the office where a mortgage on the real property would be recorded, which is the county recorder in most states.²⁷

Real-property-related collateral where the state has designated a different office. A minority of states designate a central office for fixture filings.

Transmitting utilities. Section 9-501(b) allows filing in the office of the Secretary of State regardless of the utility's location.²⁸

Multi-state operations do not change the rule. A business with employees in ten states and property in twenty still files in one place: the state of the debtor's formation, or the state of the individual's residence, or the state of the unregistered organization's chief executive office.

²³U.C.C. Section 9-501 (filing office); <https://www.law.cornell.edu/ucc/9/9-501>.

²⁴U.C.C. Section 9-307(e) (registered organization location).

²⁵U.C.C. Section 9-307(b)(1) (individual location).

²⁶U.C.C. Section 9-307(b)(2) and (3) (unregistered organizations).

²⁷U.C.C. Section 9-501(a)(1)(B) (fixture filings).

²⁸U.C.C. Section 9-501(b) (transmitting utility).

Change of debtor location. Section 9-316 preserves perfection for four months after the debtor changes location and requires a fresh filing in the new location to keep perfection past that grace period.²⁸

Change of collateral location. Irrelevant. The filing follows the debtor, not the collateral.

²⁸U.C.C. Section 9-316(a) (change of debtor location); <https://www.law.cornell.edu/ucc/9/9-316>.

5. Filing Fees And Processing Times

Every state charges to file a UCC-1. Fees converged in the ten to sixty dollar range in the years after the 2010 amendments, but the exact number varies by state and by whether the filing is submitted on paper or through the state's online portal. Fees change without much public notice, and this table should be treated as a starting reference rather than a payment source. Confirm the fee against the filing office's current schedule before submitting.

The table below covers the twenty highest volume UCC filing jurisdictions.

State	Online Fee	Paper Fee	Standard Turn-around	Portal
Delaware	\$50 flat	\$100 (1 to 4 pages)	Next business day; expedite from \$100 (24 hr) to \$1,000 (1 hr)	dcis.corp.delaware.gov/ecorp/ucc.aspx
Wyoming	\$30 (up to 2 pg), \$60 (3+ pg)	E-filing preferred	Same day via e-filing	ucc.wyo.gov
Nevada	\$40	\$40	Online same day; paper several days	nvsos.gov
Texas	\$5 SOSDirect	Paper eliminated August 2025	Same day to 48 hours	direct.sos.state.tx.us
California	\$5	\$10 under 3 pg, \$20 3+ pg	Online faster; paper days to weeks	bizfileonline.sos.ca.gov
Florida	~\$25	Filed only via FloridaUCC.com	Same day to 24 hours	floridaucc.com
New York	\$20 e-file	\$40	1 to 2 days online; 7 to 10 days paper; \$75 expedite	dos.ny.gov
Illinois	Confirm with UCC Division	Confirm with UCC Division	Varies	ilsos.gov
Pennsylvania	\$62 initial	Electronic required	Standard online; \$50 expedite	file.dos.pa.gov
Ohio	\$12	\$20	24 hours online; 3 to 7 days paper; \$100 same day expedite	ucc.ohiosos.gov
Georgia	\$25	\$25 (with assignment \$50)	24 to 48 hours online; 5 to 7 days paper	gsccca.org
North Carolina	\$30	\$38 (1 to 2 pg)	24 to 48 hours online; 7 to 10 days paper	sosnc.gov
Virginia	\$20 per debtor	\$20 per debtor	Standard varies; expedite \$50	scc.virginia.gov
Michigan	\$205 (up to 2 debtors)	\$150 (up to 2 debtors)	Standard varies; expedite \$50	sos.michigan.gov

Notes on the fee table.

Delaware fee schedule is in transition through the second half of 2026. House Bill 400, enacted in Delaware, raises various filing fees effective August 1, 2026, and reportedly adds a thirty-minute expedite tier for UCC filings. The Delaware Division of Corporations publishes the current fee list at corp.delaware.gov and should be consulted immediately before filing.

Virginia and Tennessee charge per debtor name. A single UCC-1 that names three debtors pays three times the base fee in those states.

Tennessee imposes an additional recording tax of eleven and one half cents per one hundred dollars of the indebtedness stated on the face of the filing, with the first two thousand dollars of indebtedness exempt. This tax is on top of the flat filing fee and is unique among the twenty states surveyed.

Colorado, Texas, Pennsylvania, and New Jersey no longer accept paper filings. Every UCC-1 must be filed through the online portal.

Wyoming requires filers to maintain a Prepaid Account Deposit of at least two hundred dollars to use the state's e-filing system. Casual filers can use a third party service.

Florida contracts with a private vendor, FloridaUCC LLC, to operate the Secured Transaction Registry. All filings and searches go through floridaucc.com, not through the Florida Department of State directly.

Georgia files UCC-1s at the county Clerk of Superior Court level rather than at the Secretary of State, though the statewide index maintained by the Georgia Superior Court Clerks' Cooperative Authority (GSCCCA) provides centralized search access.

Washington administers UCC filings through the Department of Licensing rather than the Secretary of State. This is an organizational quirk unique among the states surveyed and does not change the legal effect of the filing.*

*State filing fees verified against Secretary of State (or equivalent) portals in July 2026. Delaware fees in transition due to Delaware House Bill 400 effective August 1, 2026.

6. What To Attach

A UCC-1 filing office does not require the filer to submit the underlying documents. The financing statement stands alone in the public record. But between debtor and secured party, and later before a bankruptcy court or a competing creditor, the paperwork behind the filing carries the weight. A prudent secured party assembles a closing file with the following.

Security agreement. Required. Section 9-203(b)(3)(A) mandates an authenticated security agreement with a description of the collateral before the security interest attaches.²⁷ The description in the security agreement must satisfy Section 9-108, which permits identification by category, quantity, computational formula, or “any other method” if it makes the collateral objectively determinable.²⁸ A description that simply says “all the debtor’s assets” is insufficient in the security agreement even though it is sufficient in the financing statement.

Promissory note. Not strictly required by Article 9, but standard. The note is the evidence of the debt that the collateral secures. Without a note or other written obligation, an audit or bankruptcy examiner will ask whether the debt exists.

Purchase order or bill of sale. Required for purchase money security interests under Section 9-103. The document establishes that the loan proceeds were used to acquire the collateral.²⁹

Corporate authorization. A resolution of the board of directors, a members’ consent for an LLC, or a partnership authorization for a partnership. The document shows that the debtor entity was authorized to borrow, to grant a security interest, and to sign the paperwork.

Certificate of good standing. Optional but wise. A certificate dated within thirty days of closing confirms that the debtor entity was in existence and in good standing at the time of the grant.

Certified copy of the debtor’s public organic record. For registered organization debtors, a certified copy of the Certificate of Formation or Articles of Incorporation resolves any ambiguity about the debtor’s exact name for Box 1a of the UCC-1.

Insurance certificates. Where the collateral is insurable, secured parties routinely require certificates naming the secured party as loss payee and additional insured.

Landlord’s consent, mortgagee’s consent, or bailee’s consent. Where collateral will sit on real property owned by a third party, the third party’s consent avoids priority disputes over fixtures under Section 9-334.³⁰

None of these documents are filed with the UCC-1. All of them belong in the closing file.

²⁷U.C.C. Section 9-203(b)(3)(A); <https://www.law.cornell.edu/ucc/9/9-203>.

²⁸U.C.C. Section 9-108 (sufficiency of description); <https://www.law.cornell.edu/ucc/9/9-108>.

²⁹U.C.C. Section 9-103 (purchase money security interest); <https://www.law.cornell.edu/ucc/9/9-103>.

³⁰U.C.C. Section 9-334 (priority in fixtures); <https://www.law.cornell.edu/ucc/9/9-334>.

7. Common Rejection Reasons And Their Fixes

Filing offices reject UCC-1s under Section 9-516(b), which lists the exclusive grounds for refusal.³¹ A filing that clears Section 9-516(b) but contains an error may still be ineffective under the “seriously misleading” doctrine of Section 9-506. This section addresses both categories.

Name mismatch with public organic record. The most common cause of a serious misleading filing. Under Section 9-503, the debtor’s name must match the name shown on the debtor’s most recent public organic record filed with the state of formation. In *In re Tyingham Holdings, Inc.*, 354 B.R. 363 (Bankr. E.D. Va. 2007), a filing that listed the debtor as “Tyingham Holdings” instead of “Tyingham Holdings, Inc.” was held seriously misleading and the security interest was voided.³² The fix. Pull a fresh certified copy of the formation document. Match it character for character, including “Inc.,” “LLC,” “L.L.C.,” commas, and spacing. Search the filing office’s public database under both the exact name and near variants after filing to confirm the search logic surfaces the new filing.

Wrong state. A Delaware LLC filed against in Texas is not perfected. The fix. Verify formation in the applicable Secretary of State database before filing. Do not rely on the debtor’s operating address.

Missing collateral description. Section 9-502(a)(3) requires an indication of the collateral. A blank Box 4 or a description limited to “as per security agreement” is insufficient. The fix. Restate the collateral description in Box 4 even if it repeats the security agreement.

Illegible or incomplete fields. Section 9-516(b)(2). The fix. Type. Do not handwrite. If handwriting is required, print in block capitals and use black ink.

Wrong debtor type. Marking Box 1a (organization) for an individual, or vice versa, triggers rejection. The fix. If the debtor is a registered organization, use only 1a and leave 1b blank. If the debtor is an individual, use only 1b.

Filing fee not attached. Section 9-516(b)(6). The fix. Pay the exact statutory fee. Overpayment is accepted; underpayment triggers rejection. Fee tables appear in Section 5 above.

No return address for the acknowledgment. Section 9-516(b)(4). The fix. Provide a mailing address in the top block of the form.

³¹U.C.C. Section 9-516(b) (grounds for refusal); <https://www.law.cornell.edu/ucc/9/9-516>.

³²*In re Tyingham Holdings, Inc.*, 354 B.R. 363 (Bankr. E.D. Va. 2006).

Signature issues on paper filings in states that require them. A minority of states require a signature on paper filings under local variations of Section 9-516. The fix. Check the filing office's checklist before mailing.

Trade name only. Section 9-503(c) says the debtor's trade name alone is never sufficient. In *In re Grabowski*, 277 B.R. 388 (Bankr. S.D. Ill. 2002), the bankruptcy court analyzed a filing that used a business-style address and trade identifier rather than the debtor's actual individual name and location, holding the discrepancy created serious risk of misleading a searcher.[»] The fix. Use the legal name in Box 1, and if a trade name is added it belongs in Box 2 as an additional debtor line, not in place of the legal name.

Filing after the debtor's dissolution. A UCC-1 filed against a debtor whose formation state has administratively dissolved the entity is arguably ineffective. The fix. Confirm the debtor is in good standing at filing. Reinstate first if necessary.

Accidental over-termination. In *Official Committee of Unsecured Creditors v. JPMorgan Chase Bank, N.A.* (the General Motors case), 777 F.3d 100 (2d Cir. 2015), a paralegal filed a UCC-3 termination statement against JPMorgan's \$1.5 billion term loan collateral in error, and the Second Circuit held the termination effective because JPMorgan's counsel had authorized the filing without noticing the wrong loan was included.[»] The fix. Every UCC-3 termination must be reviewed by two people. Check the file number on the UCC-3 against the closed loan file, not the filer's summary.

[»]In re Grabowski, 277 B.R. 388 (Bankr. S.D. Ill. 2002).

[»]Official Comm. of Unsecured Creditors of Motors Liquidation Co. v. JPMorgan Chase Bank, N.A., 777 F.3d 100 (2d Cir. 2015).

8. How To Check UCC-1 Filing Status

Every state maintains a public UCC search database. The searches range from free and instant (Delaware, Wyoming, Texas) to fee-based and delayed (a small handful of paper-only counties). Section 9-523 requires filing offices to provide information about filings on request, and Section 9-519 requires them to assign a file number and acknowledge receipt.[»]

The acknowledgment copy. Every state returns an acknowledgment when the filing is accepted. The acknowledgment carries a file number, a filing date, and a filing time. Store the acknowledgment in the closing file. The acknowledgment is the proof that the filing was made.

The file number. A unique identifier assigned by the filing office. Section 9-519(a)(1) requires assignment of a unique number to each record.[»] The file number is the primary key for later amendments, continuations, and terminations. Any UCC-3 filed against a UCC-1 must reference the initial file number.

Confirming priority. Under Section 9-322, the first party to file or perfect wins. To confirm priority, run a search of the debtor's exact legal name in the state of the filing shortly after the acknowledgment is received. The search should return the new filing near the top of the results, and it should return no earlier filings against the same collateral. If earlier filings appear, priority is subordinate and the closing file should reflect that.

Search logic. Most states use the "standard search logic" adopted by IACA. The logic ignores case, punctuation, articles, and entity suffixes but is otherwise character for character. A single misspelled letter can make the filing "seriously misleading" under Section 9-506(c) unless the standard search logic still surfaces the filing under a correct name search.[»] Test after every filing.

Copies. Certified copies of the filing are available from the filing office for a fee, typically ten to twenty dollars per document. Certified copies are needed for post-closing audits, bankruptcy claims, and litigation exhibits.

[»]U.C.C. Section 9-523 (information from filing office); <https://www.law.cornell.edu/ucc/9/9-523>.

[»]U.C.C. Section 9-519(a)(1); <https://www.law.cornell.edu/ucc/9/9-519>.

[»]U.C.C. Section 9-506(c) (search logic safe harbor); <https://www.law.cornell.edu/ucc/9/9-506>.

9. UCC-3 Amendments

The UCC-3 is the amendment form. It handles four functions, each identified by a checkbox at the top of the form.

Continuation. Under Section 9-515, a UCC-1 lapses five years after the filing date unless a continuation is filed. A continuation extends the filing for another five years. Section 9-515(d) fixes the window: continuation may be filed only within six months before the expiration date. A continuation filed too early is void. A continuation filed after expiration is void; the original filing has already lapsed and the security interest is unperfected retroactively from the date of lapse under Section 9-515(c).[»] Repeated continuations are permitted; there is no cap on the number of five-year extensions.

Termination. A UCC-3 termination ends the effectiveness of the initial financing statement. Under Section 9-513, the secured party must file a termination within twenty days of a written demand from the debtor if the collateral is consumer goods or if there is no obligation secured by the collateral and no commitment to advance funds.[»] A wrongful failure to terminate exposes the secured party to statutory damages under Section 9-625. Terminations must reference the original file number.

Amendment. A UCC-3 amendment changes debtor name, secured party name, collateral, or address. An amendment to add collateral extends the security interest only prospectively; the priority date for the new collateral is the amendment date, not the original filing date. An amendment to change the debtor's name is required under Section 9-507(c) within four months of the name change to preserve perfection against collateral acquired after the name change.[»]

Assignment. A UCC-3 assignment transfers the secured party's rights in the financing statement to a new secured party. It is used when a loan is sold or securitized. The assignee steps into the assignor's priority position.

Every UCC-3 requires the original file number of the initial financing statement in Box 1a. Errors in the file number are the leading cause of UCC-3 rejection. Copy the number from the acknowledgment, not from memory.

[»]U.C.C. Section 9-515(d) and (c) (continuation window and lapse); <https://www.law.cornell.edu/ucc/9/9-515>.

[»]U.C.C. Section 9-513 (termination statement); <https://www.law.cornell.edu/ucc/9/9-513>.

[»]U.C.C. Section 9-507(c) (effect of name change).

10. State-Specific Quirks

Article 9 is uniform in text but not in practice. Every state adopted the 2010 amendments in some form, but each state's Secretary of State (or equivalent filing office) has developed its own administrative procedures, its own fee schedule, its own search interface, and its own quirks. This section catalogs the practical differences that a filer encounters in the twenty highest volume jurisdictions.

Delaware supplemental fees. Delaware charges a base fee for a UCC-1 filing of one to four pages, plus two dollars per additional page beyond four, plus twenty-five dollars per additional debtor beyond the first two, plus twenty dollars for public finance or manufactured home transactions. The Delaware Division of Corporations publishes the schedule at corp.delaware.gov. Delaware House Bill 400 raised various filing fees effective August 1, 2026, so filers should confirm current numbers directly before submitting. The 2026 change also added a thirty-minute expedited processing tier for certain filings.

California debtor name convention. There is no California rule requiring debtor names to be entered in all capital letters. The instruction sheet published by the California Secretary of State says only that the debtor's name must be entered exactly as it appears on the organic record (for registered organizations) or on the individual's driver's license or state ID (for individuals). Filers who see all-capitals debtor names on California UCC filings are looking at filer convention or a paper-form holdover, not a state mandate. The correct practice is to match the source document exactly, capitalization and all.

Nevada priority timing. There is no Nevada-specific thirty-day priority rule for UCC-1 filings. The rule that filers sometimes confuse with a Nevada quirk is the uniform Section 9-324 purchase money security interest rule, which requires a UCC-1 to be filed within twenty days after the debtor takes possession of non-inventory collateral to secure the PMSI's special priority over an earlier all-assets filing. This twenty-day window is uniform across all states and is not Nevada specific.

Texas paper filing eliminated. Texas eliminated paper UCC filing as of August 2025. All UCC-1s in Texas must now be filed through the SOSDirect portal at direct.sos.state.tx.us. The current filing fee is five dollars per submission, one of the lowest in the country.

Texas individual name rule. Texas adopted Alternative A of the 2010 amendments to Section 9-503. An individual debtor's name is sufficient only if it matches the name on the debtor's unexpired Texas driver's license or state identification card. Any hyphens, apostrophes, middle names, initials, and spacing on the ID must be mirrored exactly on the UCC-1. This is not a special hyphenation rule; it is a strict identity-matching rule that catches hyphens as a matter of course.

Wyoming filing system. Wyoming operates its UCC filing system through a Prepaid Account Deposit model that requires filers to fund an account with at least two hundred dollars before submitting filings. Third party filing services aggregate small filers into consolidated accounts. Wyoming's asset-protection reputation applies to its trust and LLC laws, not to its UCC-1 filings, which are public records like any other state.

New York UCC maintenance. There is no annual maintenance requirement for New York UCC filings. A New York UCC-1 is effective for five years from the filing date and can be extended for another five years by a continuation filed in the six months before expiration. The rule matches the uniform text of Section 9-515. Real estate-related UCC filings in New York are filed at the county clerk, not at the New York Department of State.

Florida private contractor. Florida contracts with FloridaUCC LLC to operate the Secured Transaction Registry. All filings and searches go through floridaucc.com. The state does not maintain a separate SOS filing option for UCC-1s.

Georgia county filing. Georgia files UCC-1s at the Clerk of Superior Court in any Georgia county. The Georgia Superior Court Clerks' Cooperative Authority runs a statewide index that consolidates the filings from all counties. Filers who submit a UCC-1 in one Georgia county gain statewide priority through the central index.

Washington administrative home. Washington administers UCC filings through the Department of Licensing rather than through the Secretary of State. Filers who look for a Washington SOS UCC portal will not find one. The correct portal is dol.wa.gov.

Illinois split filing. Illinois files most UCC-1s with the Secretary of State but real estate-related and fixture filings go to the county recorder. Confirm the correct office with the Illinois Secretary of State UCC Division at (217) 782-7518 before filing.

Ohio search access. Ohio's UCC portal at ucc.ohiosos.gov offers free public search including document images. Most other states charge for search or for image retrieval.

Virginia per debtor pricing. Virginia charges a filing fee per debtor name listed rather than a flat filing fee. A UCC-1 with three debtors costs three times the base fee.

Tennessee recording tax. Tennessee imposes a recording tax of eleven and one half cents per one hundred dollars of the indebtedness stated on the face of the UCC-1, with the first two thousand dollars of indebtedness exempt. A UCC-1 that states a five hundred thousand dollar debt pays roughly five hundred seventy three dollars in recording tax plus the fifteen dollar filing fee. Most filers avoid stating the debt amount on the face of the UCC-1 to sidestep this tax. Tennessee accepts filings that describe collateral without stating the debt amount, and the Article 9 statutory requirements do not include the debt amount.

Massachusetts multi-debtor pricing. Massachusetts charges twenty dollars for a UCC-1 with up to two debtor names and twenty dollars per additional debtor beyond that. The paper fee is forty dollars.

Colorado online only. Colorado eliminated paper UCC filing and processes all submissions through sos.state.co.us. Colorado does not require signatures on UCC records; the debtor's authorization is a matter between debtor and secured party.

Michigan uniform fee. Michigan charges the same fifteen dollar fee for online, mail, and in-person filings. This is unusual; most states discount online filing.

New Jersey electronic only. New Jersey requires electronic filing for essentially all UCC-1 submissions through njportal.com/ucc. No meaningful paper option remains.

Pennsylvania electronic only. Pennsylvania eliminated paper UCC filing. All filings go through file.dos.pa.gov. The initial filing fee is sixty-two dollars, higher than most peer states.

Arizona non-certified search free. Arizona's online UCC search returns non-certified results for free. Certified search results cost ten dollars. Filing fees are among the lowest in the country at five to eight dollars.⁴

⁴State-specific quirks compiled from Secretary of State portals and equivalent agency instructions, verified July 2026.

11. Related Party Filings

A related party UCC-1 is a filing where the secured party and the debtor share ownership, control, or family relationship. Owner-to-company loans, sister-company loans, and family loans are the common patterns. The filing is legal on its face. The filing survives scrutiny only if the underlying loan and security interest are real.

Loan reality. The lender must transfer real value to the debtor. Section 9-203(b)(1) requires “value has been given” as one of the three attachment elements.^a A transfer of cash from a personal bank account to the business bank account, documented with a promissory note, is value. A journal entry alone is not. A payment in kind can be value, but the paper trail must be complete.

Documentation before filing. Related party filings should be documented before the filing date, not after. A note dated today, a resolution dated today, and a UCC-1 filed today invite the question of whether the filing was contemporaneous with a real transaction or whether it was assembled to defeat a later creditor. Documenting the closing at the time value is transferred forecloses that argument.

Preference risk in bankruptcy. Section 547 of the Bankruptcy Code allows the trustee to avoid transfers, including the perfection of security interests, made for the benefit of an insider within one year of the bankruptcy petition.^a An insider is a person in a close relationship to the debtor, including affiliates, officers, directors, and family members. Related party UCC-1s filed within one year of a bankruptcy filing are prime candidates for preference avoidance.

Fraudulent transfer risk. Under Section 548 of the Bankruptcy Code and under the Uniform Voidable Transactions Act, a security interest granted for less than reasonably equivalent value at a time when the debtor was insolvent or was left with unreasonably small capital is avoidable.^a The trustee can void the UCC-1 and the underlying grant. The fix is to document reasonably equivalent value and to close the transaction when the debtor is solvent.

IRS scrutiny. The Internal Revenue Service does not audit UCC-1 filings, but it does audit related party loans as part of a business audit. Interest must be charged at least at the applicable federal rate under Section 7872 of the Internal Revenue Code. Loans without interest are recharacterized as gifts or as constructive distributions, either of which can create tax liability.^a

Public records aggregators. LexisNexis, Thomson Reuters, and similar aggregators pull UCC-1 filings and index them alongside other public records. Related party filings are visible to under-

^aU.C.C. Section 9-203(b)(1) (value given).

^a11 U.S.C. Section 547(b)(4)(B) (insider preference period).

^a11 U.S.C. Section 548(a)(1)(B).

^a26 U.S.C. Section 7872 (below-market loans).

writers, auditors, and adverse parties. This is a feature, not a defect. The public nature of the filing is what gives it priority.

Structure that survives. A related party UCC-1 that survives audit and bankruptcy scrutiny generally has these features. A written promissory note bearing an interest rate at or above the applicable federal rate. A written security agreement with a proper collateral description. A traceable transfer of value on a date that matches the note. A UCC-1 filed within days of the transfer. A resolution authorizing the borrowing. Ongoing debt service, whether cash, credit, or forbearance, that treats the loan like a real obligation.

Structure that does not survive. A note signed years after the “loan.” A UCC-1 filed the week before a bankruptcy petition or a large lender application. A collateral description that sweeps in assets acquired long before the loan. A loan with no repayment history and no interest accrual.

12. Case Law Highlights

Article 9 doctrine is shaped by decisions that turn on tiny facts. A missing suffix, a paralegal's cut and paste error, a nickname on a driver's license, an address in the wrong field. The cases below are the ones cited most often in secondary treatises and are the ones every filer should know before touching a UCC-1.

In re Tyingham Holdings, Inc., 354 B.R. 363 (Bankr. E.D. Va. 2006). The debtor's exact name was "Tyingham Holdings, Inc." The UCC-1 named "Tyingham Holdings." The bankruptcy court held the omission of "Inc." made the financing statement seriously misleading under Section 9-506(a), and a standard search logic search of the correct name did not surface the flawed filing. The secured creditor lost its security interest in a multi-million dollar collateral pool. Lesson: entity suffix is part of the name.

Official Committee of Unsecured Creditors of Motors Liquidation Co. v. JPMorgan Chase Bank, N.A., 777 F.3d 100 (2d Cir. 2015). Also known as the General Motors case. A paralegal at Mayer Brown, working on the termination of a synthetic lease unrelated to JPMorgan's \$1.5 billion term loan, drafted a set of UCC-3 termination statements that inadvertently included a termination of the term loan's main UCC-1. Senior counsel at Mayer Brown, Simpson Thacher (JPMorgan's counsel), and JPMorgan all approved the filing package without catching the extra termination. When GM later filed bankruptcy, the trustee took the position that the term loan was unsecured. The Second Circuit agreed, holding that JPMorgan had authorized the filing even though nobody at JPMorgan actually intended to terminate the term loan. Lesson: read every file number on every UCC-3 before authorizing filing.

Pankratz Implement Co. v. Citizens National Bank, 281 Kan. 209, 130 P.3d 57 (2006). Pankratz filed a UCC-1 naming the individual debtor "Roger House." The debtor's actual legal name was "Rodger House," with a "d." A search under the correct spelling did not disclose the misspelled filing under the Kansas filing office's standard search logic. The Kansas Supreme Court held the one-letter misspelling seriously misleading under Section 9-506, subordinating Pankratz's earlier-filed interest to a later, correctly named bank filing. Lesson: one letter matters when it defeats the search algorithm.

In re Kinderknecht, 308 B.R. 71 (10th Cir. BAP 2004). The debtor's legal name was Terrance Joseph Kinderknecht, but he was known as "Terry Kinderknecht" and filed his federal tax returns as Terry Kinderknecht. Two UCC-1s named "Terry J. Kinderknecht." The Bankruptcy Appellate Panel held that the filings did not reflect the debtor's correct legal name and were seriously misleading. Lesson: use the name that appears on the driver's license or on the birth certificate, not the nickname.

In re Miller, 2012 U.S. Dist. LEXIS 116275 (C.D. Ill. 2012). A UCC-1 named the debtor “Bennie A. Miller,” but the debtor’s Illinois legal name was “Ben Miller.” A search under the correct name did not surface the filing under the state’s search logic. The court held the filing seriously misleading and left the bank perfected only as to the co-debtor spouse’s one-half interest in the collateral. Lesson: nickname or middle-initial variations that defeat search logic are fatal in Alternative A jurisdictions.

13. Step By Step Walkthrough

The scenario. Acme Widgets, LLC is a Delaware limited liability company with its principal place of business in Austin, Texas. First National Bank of Anywhere, a New York-chartered bank, is closing a five hundred thousand dollar working capital line of credit secured by all business assets of Acme. This section walks the file from start to acknowledgment.

Step 1. Confirm the debtor's exact legal name. Pull the Certificate of Formation from the Delaware Division of Corporations at <https://icis.corp.delaware.gov>. The document reads "ACME WIDGETS, LLC." Note the all capitals in Delaware's filings. Some filers convert to mixed case; the safer practice is to file the UCC-1 exactly as the certificate reads.

Step 2. Confirm the debtor's location. Acme is a registered organization formed under Delaware law. Under Section 9-307(e), Acme is located in Delaware. The filing office is the Delaware Department of State, Division of Corporations, UCC Filing Section.

Step 3. Confirm the secured party's exact legal name. The bank's charter document, on file with the New York State Department of Financial Services, shows the name as "FIRST NATIONAL BANK OF ANYWHERE." Use the exact name.

Step 4. Draft the security agreement. Include a collateral description that satisfies Section 9-108. A workable description reads: "All assets of the debtor, whether now owned or hereafter acquired, and all proceeds thereof, including without limitation all accounts, chattel paper, inventory, equipment, instruments, investment property, documents, deposit accounts, letter of credit rights, general intangibles, and supporting obligations." Attach the security agreement as an exhibit to the loan agreement.

Step 5. Draft the promissory note. Face amount five hundred thousand dollars, interest rate one month SOFR plus three hundred basis points, maturity five years, secured by all assets of the debtor per the security agreement of even date.

Step 6. Obtain the LLC's resolution. A written consent of the members authorizes the borrowing, the security grant, and the officer signature on all closing documents. The resolution is dated the closing date.

Step 7. Prepare the UCC-1 form. Use the IACA National UCC Financing Statement, April 20, 2011 revision.

Box 1a. Organization's name. ACME WIDGETS, LLC.

Box 1c. Mailing address. 1209 Orange Street, Wilmington, DE 19801 USA. Alternatively, the debtor's Austin operating address may be used; Delaware does not require the registered agent address in Box 1c.

Box 3a. Organization's name. FIRST NATIONAL BANK OF ANYWHERE.

Box 3c. Mailing address. 100 Main Street, Anywhere, NY 10001 USA.

Box 4. Collateral description. Copy the description from the security agreement. Do not shorten it to "all assets" unless the security agreement is coextensive.

Box 5. Alternative designation. Leave unchecked. This is not a lease, consignment, or purchase-money transaction.

Box 6a. Indicate whether the debtor is a transmitting utility. Leave unchecked.

Box 7. Alternative designation. Leave unchecked.

Box 8. Filer reference data. Enter the bank's internal loan number, for example "Loan No. 100-2026-7742."

Step 8. Submit the filing. Delaware accepts online filings through the Division of Corporations UCC filing portal. Create an account, upload the completed form as a PDF, pay the fee by credit card, and download the acknowledgment. Delaware typically returns the acknowledgment within one business day. The filing fee for a one-page UCC-1 in Delaware is currently around ninety-five dollars including the state's supplemental fees. Confirm current fees at the Delaware Division of Corporations website.

Step 9. Save the acknowledgment. Download the PDF acknowledgment. Save it to the closing file with the exact file number, filing date, and filing time. Print a certified copy for the closing binder.

Step 10. Search to confirm. Immediately after the acknowledgment lands, run a UCC search on the Delaware Division of Corporations database for "ACME WIDGETS, LLC." Confirm that the new filing appears at the top of the results. Confirm that no earlier filings compete for priority in the same collateral. If earlier filings appear, evaluate priority; a purchase money security interest in specific collateral may still take priority under Section 9-324.

Step 11. Docket the five-year expiration. Enter the continuation window (five years minus six months from the filing date) into the bank's tickler system. When the window opens, file the UCC-3 continuation.

Step 12. Docket the debtor's operational events. If Acme changes name, merges, or reorganizes, Section 9-507 requires action within four months to preserve perfection. If Acme redomesticates from Delaware to another state, Section 9-316 gives a four month grace period followed by a required refiling.

That is the entire mechanical process. Twelve steps, one form, and a docketing system.

14. FAQ

Q1. Can I file a UCC-1 against another person or business without their permission? No. Section 9-509 requires the debtor's authorization. An unauthorized filing exposes the filer to statutory damages of five hundred dollars per violation plus actual damages and attorney fees under Section 9-625(b) and (e).

Q2. How long does a UCC-1 last? Five years from the filing date under Section 9-515(a). A continuation filed in the six months before expiration extends the filing another five years.

Q3. Does the debtor sign the UCC-1? Under the uniform text, no. The debtor's authorization is captured in the security agreement, not on the financing statement. A few states have local variations requiring a signature on paper filings; check the filing office's checklist.

Q4. Where do I file if the debtor is a Delaware LLC operating in Texas? Delaware. The filing follows the state of formation, not the state of operations.

Q5. Where do I file if the debtor is an individual living in Arizona but doing business in Nevada? Arizona. The filing follows the individual's principal residence.

Q6. Can I file a UCC-1 online? Yes, in every state that maintains a filing office at the Secretary of State level, which is every state. Fees, processing time, and interface vary.

Q7. What is a UCC-11? An information request form for a UCC search. Most states accept UCC-11 requests online or by mail. Fees vary.

Q8. What is a UCC-5? A correction statement filed by a person named as debtor to challenge the accuracy or authority of a filed record. Section 9-518. A correction statement does not remove the filing; it appends a challenge to it.

Q9. Can a UCC-1 be filed against real estate? Not directly. UCC-1s cover personal property. Real estate collateral is covered by a mortgage or deed of trust filed in the county land records. Fixtures cross the line, and a fixture filing is filed in the land records under Section 9-501(a)(1)(B).

Q10. Can a UCC-1 cover bank accounts? Yes, but perfection in a deposit account as original collateral requires control under Section 9-104 and Section 9-312(b)(1). The UCC-1 alone does not perfect. The secured party must have a deposit account control agreement with the bank.

Q11. Can I use "all assets" as the collateral description? In the financing statement, yes, under Section 9-504(2). In the security agreement, no. The security agreement description must satisfy Section 9-108 with reasonable identification.

Q12. What is the difference between attachment and perfection? Attachment is the creation of an enforceable security interest between debtor and secured party under Section 9-203.

Perfection is the public notice that gives the secured party priority over other creditors under Sections 9-308 through 9-316. Both are required for the security interest to be fully effective.

Q13. Do I need a UCC-1 for a purchase money security interest? Yes, for non-consumer collateral. For consumer goods, Section 9-309 makes purchase money security interests automatically perfected, no filing required. For anything else, the UCC-1 must be filed within twenty days of the debtor receiving possession to secure the special purchase money priority of Section 9-324.

Q14. Can I amend a UCC-1 to add collateral? Yes. File a UCC-3 amendment. The priority date for the added collateral is the amendment date, not the original filing date.

Q15. Can I amend a UCC-1 to change the debtor's name? Yes. File a UCC-3 amendment. Do it within four months of the debtor's name change under Section 9-507(c) to preserve perfection against collateral acquired after the name change.

Q16. What happens if I miss the continuation deadline? The filing lapses. The security interest becomes unperfected retroactively from the date of lapse under Section 9-515(c). A new UCC-1 can be filed, but the new priority date is the new filing date, and any intervening creditor moves ahead.

Q17. Can a UCC-1 be filed by mail? Yes, in every state. Turnaround for paper filings is longer than online, often three to ten business days.

Q18. What if the debtor is a trust? Under Section 9-503(a)(3), if the debtor is a common law trust, the financing statement must name the trust or provide the name of the settlor and additional information to distinguish the trust. Business trusts and statutory trusts are treated as registered organizations if they are registered.

Q19. Can multiple secured parties file separate UCC-1s against the same debtor? Yes. Each records its own priority position under Section 9-322. First to file or perfect wins.

Q20. Does a UCC-1 affect the debtor's credit score? No. Consumer credit bureaus (Equifax, Experian, TransUnion) do not report UCC-1 filings. Commercial credit bureaus (Dun and Bradstreet, Experian Business, Equifax Business) do report them and factor them into commercial credit files. A large all-assets UCC-1 can signal that the debtor's assets are already pledged and can affect a later lender's underwriting decision.

Q21. Can I terminate a UCC-1 online? Yes, in every state. Terminations require the initial file number and, in some states, the filer's account credentials.

Q22. Do I need an attorney to file a UCC-1? No. UCC-1 filing is a ministerial act. Deciding what to file, against whom, for what collateral, under what security agreement, and in what jurisdiction is legal work. For material transactions, retain counsel.

Q23. Can a UCC-1 be filed against a decedent? Under Section 9-503(a)(2), if the debtor is a decedent's estate, the financing statement must provide the name of the decedent as it appears on the order appointing a personal representative.

Q24. What is a “double debtor” problem? When a security interest that was perfected against Debtor A remains perfected after Debtor A transfers the collateral to Debtor B, subject to a one year cutoff and a set of transitional rules under Sections 9-507 and 9-508. The security interest continues, but the secured party’s failure to refile against Debtor B within one year can defeat priority against Debtor B’s other creditors.

Q25. What is the fastest state to file in? Delaware, Wyoming, and Texas process online UCC filings in under two hours during business hours, often within minutes. Turnaround for paper filings is longer.

Q26. What is the cheapest state to file in? Fees have converged in the ten to twenty five dollar range in most states for a standard one page online filing. Delaware is the notable outlier at the high end because of the supplemental fees. See Section 5.

Q27. Can I file a UCC-1 in a state where the debtor has no presence? You can submit it, but if the state is not the correct filing state under Section 9-501 and Section 9-307, the filing does not perfect. The fee is not refundable.

Q28. Can I use a P.O. Box for the debtor’s address? For an individual, yes. For a registered organization, the mailing address should generally be a street address, and most filing offices require it.

Q29. What happens if my UCC-1 is rejected? The filing office returns the filing with a rejection reason. The filer can correct the deficiency and refile. Section 9-516(d) provides that if a filing is refused for a reason not on the exclusive list in 9-516(b), the filing is nonetheless effective against a purchaser that gives value in reasonable reliance on the absence of the record. This is a narrow exception, not a filing strategy.

Q30. Where can I find the full Article 9 text? Cornell Legal Information Institute at <https://www.law.cornell.edu/ucc/9>. Each state’s enacted version is at that state’s official statutory site.

15. UCC-1 And Commercial Credit Bureaus

A UCC-1 filing is public. Every commercial credit bureau in the United States indexes UCC filings and attaches them to the debtor's commercial credit file. This section explains what shows up, where it shows up, and what a UCC-1 signals to a downstream lender.

Dun and Bradstreet. D&B pulls UCC filings from state Secretary of State databases and aggregates them into the debtor's D&B business file, indexed by DUNS number. A UCC-1 appears in the "Public Filings" section of the D&B report along with the filing date, the secured party, the collateral description, and the file number. D&B does not editorialize; the raw filing appears. D&B scoring models weigh UCC filings, particularly "all assets" filings, as a signal of pledged capacity. A debtor with a live all-assets UCC-1 to a bank has less available collateral for a new lender to attach.

Experian Business. Experian's Business Credit Report also includes UCC filings, labeled as "UCC Filings" in the report. Experian tracks filings for seven years from the filing date, though the underlying legal effect lasts only five years per Section 9-515. Experian's Intelliscore Plus scoring model factors UCC filings into the credit score for smaller businesses in particular.

Equifax Business. Equifax pulls UCC data through third party public records aggregators and includes filings on the Equifax Business Credit Report. Filings appear with the same standard fields.

LexisNexis and Thomson Reuters. Aggregators sell UCC filing data to underwriters, litigators, and asset locators. A UCC-1 that names a debtor by exact legal name will surface in LexisNexis background reports run against that name.

Practical implications for filers.

A related party UCC-1 telegraphs the relationship to any commercial lender that later underwrites the debtor. Sophisticated underwriters treat an all-assets UCC-1 as an encumbrance and require either a subordination agreement or termination before extending new credit.

A UCC-1 that says "all assets" reduces the debtor's borrowing capacity from the bureau's perspective. A UCC-1 that is limited to a specific piece of equipment does not.

A UCC-1 that has lapsed but has not been terminated may still show as active on some bureau reports. A UCC-3 termination should be filed after payoff to clean the record.

A debtor cannot cause the removal of a UCC-1 from a credit bureau by disputing it with the bureau. The filing is public record. The debtor's remedy is a UCC-5 correction statement if the

debtor believes the filing is inaccurate or unauthorized, or a UCC-3 termination if the secured party will sign it.

16. UCC-1 And Bankruptcy

The moment a debtor files a bankruptcy petition, the strong arm power of the trustee under Bankruptcy Code Section 544(a)(1) takes hold. A trustee stands in the shoes of a hypothetical judgment lien creditor as of the petition date. An unperfected security interest is subordinate to a judgment lien creditor and therefore subordinate to the trustee. Practical translation: an unperfected UCC-1 is worthless in bankruptcy.”

Preference. Section 547(b) allows the trustee to avoid a transfer, including the perfection of a security interest, made on account of an antecedent debt, while the debtor was insolvent, within ninety days before the petition (one year for insiders), that enabled the creditor to receive more than it would in a Chapter 7 liquidation.” A UCC-1 filed within the preference period to secure a pre-existing debt is a classic preference target.

Section 547(e)(2) treats the filing as the transfer date for perfection purposes if the filing occurs more than thirty days after the transfer date. This is the “thirty day trap” for delayed filings. A secured party that gives value on day one and files the UCC-1 on day thirty one is treated as having received the perfection on day thirty one, which starts the preference clock on that date.

Fraudulent transfer. Section 548(a)(1)(B) allows the trustee to avoid a transfer for less than reasonably equivalent value made while the debtor was insolvent or was left with unreasonably small capital. Related party grants for stale debt or for no new value are the classic targets.”

Automatic stay. Section 362 of the Bankruptcy Code stops all collection action, including filing or continuing a UCC-1 against the debtor, at the moment of the petition. A UCC-3 continuation filed after the petition date is a stay violation and voidable. The exception: a continuation may be filed within the six month window per Section 9-515 even if the debtor is in bankruptcy, because it does not “create” a security interest but merely maintains an existing one.

Adequate protection. If collateral covered by a perfected UCC-1 depreciates during a Chapter 11, the secured party may seek adequate protection under Section 361. The UCC-1 does not itself provide adequate protection; the security interest does. The UCC-1 is the notice that gives the interest its priority.

Cash collateral. Under Section 363(c), the debtor in possession cannot use cash collateral (proceeds of pledged accounts receivable and pledged deposit accounts) without the secured party’s consent or court order after notice and a hearing. Cash collateral disputes turn on the

“11 U.S.C. Section 544(a)(1).

“11 U.S.C. Section 547(b) (preference elements).

“11 U.S.C. Section 548(a)(1)(B) (constructive fraudulent transfer).

strength of the UCC-1 description and on whether the debtor pledged the accounts, the deposit accounts, or both.”

Plan confirmation. In a Chapter 11, the debtor’s plan of reorganization must satisfy the secured party’s claim through payment, surrender of collateral, or reinstatement of the debt. A properly filed UCC-1 protects the secured party’s position in the plan process. A defective UCC-1 puts the secured party in the unsecured pool.

Lessons for filers.

File early. The preference period runs backward from the petition date. A UCC-1 filed contemporaneously with the loan is safe; a UCC-1 filed months later to shore up documentation is at risk.

Document new value. Related party filings survive preference challenges when they secure new value, which the Bankruptcy Code defines as money, money’s worth, or new credit. Documented cash transfers to the debtor’s bank account are new value. A pledge to secure a pre-existing debt without new consideration is not.

Refile after formation state change. If the debtor merged, dissolved, or redomesticated within the last year, verify that the current UCC-1 is filed in the current formation state. Section 9-316 gives a four month grace period. Failure to refile after a state change destroys perfection.

¹¹ U.S.C. Section 363(c)(2) (use of cash collateral).

17. Precautionary UCC-1 Filings For True Leases

An equipment lessor faces a recharacterization problem. If the “lease” is really a disguised secured sale, the lessor loses the right to repossess as an owner and instead has an unperfected security interest, which loses to the debtor’s other creditors and to the bankruptcy trustee. To manage the risk, lessors file a precautionary UCC-1.

The true lease test. Under Section 1-203, a transaction creates a security interest rather than a true lease if the lessee’s obligation to pay is not subject to termination and any of four conditions apply: (1) the lease term equals or exceeds the remaining economic life of the goods; (2) the lessee is bound to renew or become the owner; (3) the lessee has an option to renew for the remaining economic life for no or nominal consideration; or (4) the lessee has an option to become the owner for no or nominal consideration. Nominal consideration is generally read as less than the goods’ fair market value at the option date.⁸

The precautionary filing. The lessor files a UCC-1 that names the lessee as debtor, names the lessor as secured party, and describes the equipment. The filing also indicates that it is precautionary and that the underlying transaction is a true lease. The filing preserves the lessor’s priority position in the event a court later recharacterizes the lease.

The Box 5 designation. The IACA form’s Box 5 (in the 2011 revision) or Item 7 (in the 2023 revision) provides an alternative designation. Check “Lessee/Lessor.” The check signals the nature of the relationship and preserves the lessor’s argument that the filing does not create a security interest.

Legend on the form. Some lessors also add a legend to the collateral description: “This financing statement is filed for informational and precautionary purposes only. The transaction between the parties is a true lease under UCC Article 2A, and no security interest is intended.” The legend has no legal effect on the classification of the transaction, but it documents intent.

State variations. Some states accept a shorter precautionary legend. Some states require the same fee as a regular UCC-1. Some states specifically process the filing in a separate index. Confirm with the filing office.

Duration. A precautionary UCC-1 has the same five year effective period as any UCC-1 under Section 9-515. Continue it in the six month window before expiration.

⁸U.C.C. Section 1-203; <https://www.law.cornell.edu/ucc/1/1-203>.

18. Consignments Under Article 9

A consignment of goods to a merchant for sale triggers a UCC-1 filing requirement in most cases. Section 9-103(d) defines a consignment as a transaction, regardless of its form, in which a person (the consignor) delivers goods to a merchant for the purpose of sale, if certain conditions are met, including that each delivery has an aggregate value of one thousand dollars or more, the goods are not consumer goods immediately before delivery, and the merchant is not generally known by its creditors to be substantially engaged in selling the goods of others.”

If the transaction meets the definition, the consignor’s interest is treated as a purchase money security interest in inventory for perfection and priority purposes. Section 9-324(b) requires the consignor to file a UCC-1 before the merchant receives possession and to send authenticated notification to any other secured party holding a conflicting security interest in the merchant’s inventory. The notification must state that the consignor expects to acquire a purchase money security interest in inventory of the debtor and must describe the inventory.

If the transaction does not meet the Section 9-103(d) definition (for example, because the goods have a value of less than one thousand dollars or because the merchant is generally known to sell others’ goods), Article 9 does not apply, and common law consignment rules govern. Under the common law, the consignor retains title and can reclaim the goods against the consignee’s creditors. Under the UCC treatment, the consignor’s position is preserved only by a timely filed UCC-1.

Consignors of art, antiques, and inventory routinely file UCC-1s to be safe. The filing costs little and the loss from getting the classification wrong is total.

”U.C.C. Section 9-103(d); <https://www.law.cornell.edu/ucc/9/9-103>.

19. Appendix A. Full Text Of A UCC-1 Financing Statement

Below is a completed UCC-1 for the Acme Widgets, LLC hypothetical of Section 13.

UCC FINANCING STATEMENT (Form UCC1)

Follow instructions.

A. NAME AND PHONE OF CONTACT AT FILER (optional):

Jane Counsel, Esq. / (212) 555-1000

B. E-MAIL CONTACT AT FILER (optional):

jcounsel@bankofanywhere.com

C. SEND ACKNOWLEDGMENT TO: (Name and Address)

First National Bank of Anywhere

Attn: UCC Filings

100 Main Street

Anywhere, NY 10001

1. DEBTOR'S NAME: Provide only one Debtor name (1a or 1b) (use exact, full name; do not omit, modify, or abbreviate any part of the Debtor's name); if any part of the Individual Debtor's name will not fit in line 1b, leave all of item 1 blank, check here [] and provide the Individual Debtor information in item 10.

1a. ORGANIZATION'S NAME

ACME WIDGETS, LLC

OR

1b. INDIVIDUAL'S SURNAME | FIRST PERSONAL NAME | ADDL NAME(S)/INIT | SUFFIX

1c. MAILING ADDRESS	CITY	STATE	POSTAL CODE	COUNTRY
1209 Orange Street	Wilmington	DE	19801	USA

2. DEBTOR'S NAME: Provide only one Debtor name (2a or 2b).

2a. ORGANIZATION'S NAME

OR

2b. INDIVIDUAL'S SURNAME | FIRST PERSONAL NAME | ADDL NAME(S)/INIT | SUFFIX

2c. MAILING ADDRESS CITY STATE POSTAL CODE COUNTRY

3. SECURED PARTY'S NAME: Provide only one Secured Party name (3a or 3b).

3a. ORGANIZATION'S NAME

FIRST NATIONAL BANK OF ANYWHERE

OR

3b. INDIVIDUAL'S SURNAME | FIRST PERSONAL NAME | ADDL NAME(S)/INIT | SUFFIX

3c. MAILING ADDRESS CITY STATE POSTAL CODE COUNTRY
100 Main Street Anywhere NY 10001 USA

4. COLLATERAL: This financing statement covers the following collateral:

All assets of the Debtor, whether now owned or hereafter acquired, and all proceeds thereof, including without limitation all accounts, chattel paper, inventory, equipment, instruments, investment property, documents, deposit accounts, letter-of-credit rights, general intangibles, and supporting obligations of the Debtor.

5. Check only if applicable and check ONLY one box:

☐ Collateral is held in a Trust

☐ Being administered by a Decedent's Personal Representative

6a. Check only if applicable and check ONLY one box:

☐ Public-Finance Transaction

☐ Manufactured-Home Transaction

☐ A Debtor is a Transmitting Utility

6b. Check only if applicable and check ONLY one box:

☐ Agricultural Lien

☐ Non-UCC Filing

7. ALTERNATIVE DESIGNATION (if applicable):

☐ Lessee/Lessor

☐ Consignee/Consignor

☐ Seller/Buyer

☐ Bailee/Bailor

☐ Licensee/Licenser

8. OPTIONAL FILER REFERENCE DATA:

Loan No. 100-2026-7742

The filing above satisfies Section 9-502(a): it names the debtor, names the secured party, and indicates the collateral. It complies with Section 9-503 by using the exact legal name from the Delaware Certificate of Formation. It complies with Section 9-504 by describing collateral in a manner sufficient for the financing statement. When it lands at the Delaware Division of Corporations with the correct fee, the filing office assigns a file number, records the filing date and time, and returns the acknowledgment. Perfection dates from the filing time.

20. Appendix B. Sample UCC-3 Continuation Statement

UCC FINANCING STATEMENT AMENDMENT (Form UCC3)

A. NAME AND PHONE OF CONTACT AT FILER (optional):

Jane Counsel, Esq. / (212) 555-1000

B. E-MAIL CONTACT AT FILER (optional):

jcounsel@bankofanywhere.com

C. SEND ACKNOWLEDGMENT TO: (Name and Address)

First National Bank of Anywhere

Attn: UCC Filings

100 Main Street

Anywhere, NY 10001

1a. INITIAL FINANCING STATEMENT FILE NUMBER:

2026-1234567

1b. This FINANCING STATEMENT AMENDMENT is to be filed for record
(or recorded) in the REAL ESTATE RECORDS:

[] (check for real property records only)

2. TERMINATION: Effectiveness of the Financing Statement
identified above is terminated with respect to the security
interest(s) of Secured Party authorizing this Termination
Statement.

[]

3. ASSIGNMENT (full or partial):

[]

4. CONTINUATION: Effectiveness of the Financing Statement
identified above with respect to the security interest(s) of
Secured Party authorizing this Continuation Statement is
continued for the additional period provided by applicable law.

[X]

5. PARTY INFORMATION CHANGE:

☐ Debtor ☐ Secured Party of record
☐ Change name and/or address
☐ Add name
☐ Delete name

9. NAME OF SECURED PARTY OF RECORD AUTHORIZING THIS AMENDMENT:
FIRST NATIONAL BANK OF ANYWHERE

10. OPTIONAL FILER REFERENCE DATA:
Continuation of Loan No. 100-2026-7742

A continuation statement is filed within the six month window before the initial UCC-1 expires. Miss the window and the security interest becomes unperfected retroactively from the lapse date under Section 9-515(c).

21. Appendix C. Reader's Checklist Before Filing

Use the checklist below to catch the most common defects before submitting the filing.

Debtor identity. - Correct legal name from the most recent public organic record on file with the state of formation? Yes or no. - Entity suffix included (Inc., LLC, L.L.C., Corp., etc.)? Yes or no. - If individual debtor, name matches unexpired state driver's license or state ID exactly? Yes or no. - Debtor in good standing with the state of formation as of the filing date? Yes or no.

Debtor location. - Registered organization: filed in the state of formation? Yes or no. - Individual: filed in the state of the debtor's principal residence? Yes or no. - Unregistered organization: filed in the state of the chief executive office? Yes or no.

Secured party identity. - Correct legal name of the secured party or the party authorized to act as representative under Section 9-502(f)? Yes or no. - Correct mailing address for return of the acknowledgment? Yes or no.

Collateral description. - Description in Box 4 sufficient to reasonably identify the collateral, either by category or specific enumeration? Yes or no. - If using "all assets" language, is the security agreement's description more specific under Section 9-108? Yes or no. - Ancillary categories included as appropriate (accounts, chattel paper, inventory, equipment, instruments, investment property, documents, deposit accounts, letter of credit rights, general intangibles, supporting obligations)? Yes or no.

Alternative designations. - Box 5 (or Item 7) checked if the transaction is a lease, consignment, seller's interest, bailment, or license? Yes or no. - Box 6a (or 6b) checked if the transaction is a public finance transaction, manufactured home transaction, or transmitting utility filing? Yes or no.

Filing office. - Correct portal or paper address for the debtor's location? Yes or no. - Current fee schedule confirmed? Yes or no. - Payment method authorized by the portal? Yes or no.

Post filing. - Acknowledgment received and saved with the closing file? Yes or no. - Search of the exact debtor legal name in the state's UCC database confirms the new filing? Yes or no. - No earlier competing filings against the same collateral? If yes, priority evaluated? Yes or no. - Continuation deadline docketed (five years minus six months from the filing date)? Yes or no.

Closing file. - Security agreement signed by an authorized officer of the debtor? Yes or no. - Promissory note signed and delivered? Yes or no. - Corporate resolution or LLC consent authorizing the borrowing and the grant? Yes or no. - Certificate of good standing of the debtor

dated within thirty days? Yes or no. - Certified copy of the debtor's public organic record? Yes or no. - Insurance certificates naming the secured party as loss payee and additional insured? Yes or no. - Any required landlord's, mortgagee's, or bailee's consent? Yes or no. - Purchase order or bill of sale for purchase money security interests? Yes or no.

The checklist takes less time to run than the audit takes to correct.

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About This Paper

Author. NMD Solutions.

Editor. Za.

Correspondence. NMD Solutions website.

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Disclaimer. This paper is a general reference. It is not legal advice. It does not create an attorney-client relationship. Filers with material collateral, complex debtor structures, tax exposure, or bankruptcy risk should retain licensed counsel in the applicable jurisdiction. Article 9 has been adopted in a form close to uniform in every state, but material variations exist in filing fee, form of filing, and administrative practice. Verify the current fee and procedure with the filing office before submitting.

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